



DELANEY ROBERTS

SPECIALIST FAMILY LAWYERS

Our Ref: ALR:OS:13629
Your Ref: Matthew Shepherd

28 June 2024

Mr Shepherd
Ramsden Family Law
6/15 Castlereagh Street
Sydney NSW 2000

By Email only: mshepherd@ramsdenlaw.com.au

Dear Colleagues

Re: Cooke & Cooke

We refer to the interim parenting orders dated 23 April 2024, and particularly Order 10(c) which provides as follows: *"10. That each of the parents is hereby restrained from... (c) using physical punishment to discipline the children."*

We are instructed that on 24 June 2024, when the children returned to our client's care after spending the weekend with your client, Joshua informed our client that he had been physically disciplined by your client. On this occasion, Joshua said to our client:

"I had a bad weekend. I want a do over 'cos I didn't have a very good time with Dad". When our client asked him what had happened, "I spilt water on the leather lounge so Dad put me in time out twice - once on Saturday and once on Sunday. Dad hit me across the back and bottom and he left me in time out for three hours the first time and five hours the second time." Joshua was extremely distressed as he told our client this and was sobbing heavily.

Our client was significantly concerned about Joshua's statement and immediately scheduled a consultation with a GP, Dr Dean Miller at Newcastle General Practice. (Joshua's usual GP, Dr Tonkin, was not available on this occasion). Our client requested a medical assessment of Joshua as a result of his disclosure.

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Our client took Joshua to see Dr Miller on Wednesday, 26 June 2024. On this occasion, Dr Miller asked Joshua what had happened. Joshua repeated what he had said to our client; that your client had hit him across the back and buttocks and, in addition, told Dr Miller that your client had thrown him into his bedroom by grabbing him around the collar of his t shirt then slammed the door, leaving him for an extended period of time. Whilst Joshua does not have a watch or a clear understanding of time, his explanation of the time out was that it was for several hours and a very long period of time in comparison to the time outs he has at our client's home of 2 minutes for a short time-out or 10 minutes for an extended time-out. Dr Miller asked Joshua to repeat his explanation of the incident, and Joshua repeated his disclosure and he also had Joshua physically demonstrate what had occurred. Dr Miller also asked Joshua if this was the first time he had been smacked, to which Joshua replied "*No, he's smacked me lots of times*".

Dr Miller was sufficiently satisfied that the assault had occurred and made a report to Child Protection Services while our client and Joshua remained in the consultation. Our client has made follow up enquiries with Child Protection Services in an effort to expedite this matter. Our client is extremely concerned for the safety of the children whilst in the care of your client and has therefore determined that the children shall not spend any unsupervised time with your client. She is taking steps to bring this issue before the Court without delay.

Our client therefore proposes that until the Court can made a further interim determination, the children spend supervised time with your client at a suitable contact centre:

1. Each Thursday from 4:00pm to 6:00pm, and
2. Each fortnight from 9:00am to 1:00pm on Saturday, and 9:00am to 1:00pm on the following Sunday.

Whilst we understand that your client may be upset by our client's approach to this matter, our client is only concerned about ensuring the safety of the children and herself moving forward.

Yours faithfully

Delaney Roberts Family Lawyers



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